

the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

III. ANALYSIS

Plaintiff avers that the Defendant has failed to comply with the March 19, 2026 hearing and April 6, 2026 formal order compelling Defendant to provide code-compliant responses to Plaintiff's Request for Production of Documents ("RFPD"), Set One, Nos. 10-12 with all responsive documents and electronically stored information ("ESI"). (Declaration of Edward Colbert, p. 6). The Court ordered the defendant to produce responses within fourteen days from the March 19 hearing date and also awarded sanctions in the amount of \$2,000.00 that were also to be paid within fourteen days from the hearing date. Fourteen days from the March 19, 2026 hearing is April 2, 2026 (*Id.*).

Plaintiff asserts that Defendant did not comply with the Court Order as it did not receive any further responses to RFPD Nos. 10-12 or the sanctions award within the fourteen day period. On April 14, 2026, the plaintiff sent correspondence to the defendant via e-mail to follow-up on the production of document. (*Id.*, and Exhibit F). Defendant responded that he was attempting to gather the required documents and would provide an update on April 17. (*Id.*, at p. 7). Plaintiff's counsel responded the next date confirming that he expected an update from Mr. Milks on April 17 and asked Defendant to confirm that his e-mail account was forensically imaged to ensure that production would be in the same native file and not simply in pdf form. (*Id.*, and Exhibit G). Plaintiff's counsel received no update from the defendant on April 17. (*Id.*). On April 20, Mr. Colbert reached out to the defendant regarding the court order and that a motion may be required. (*Id.*). Defendant responded that his ESI consultant was, "in the process of compiling the case file information" and that he would provide a status update when available. (*Id.*, and Exhibit H). That same day, the plaintiff's lead counsel, William A. Lapcevic e-mailed Mr. Milks to address compliance with the prior court order and to immediately provide the identity of his ESI consultant. (*Id.*). Counsel continued to meet-and-confer. (*Id.*, and Exhibit I).

On April 23, 2026, plaintiff's counsel received an envelope with Defendants Milks containing a cover letter dated April 22, 2026 stating that the thumb drive contained, "the case files for Santa Clara County Superior Court Cases No. 21CV388981, 22CV402440 and 22CV406644 regarding the document production relating to the subject case." (*Id.*, at p. 7-8; Exhibit J); a thumb drive; and a check in the amount of \$2,000.00 as ordered by the Court on March 19, 2026.

It is unopposed that the defendant complied with payment of sanctions of \$2,000.00 by submitting a written check to Plaintiff's counsel on April 23, 2026. (*Id.*, at p. 7). It is noted that the payment was late, but given that the full amount of sanctions was paid, the Court will not comment further on the payment of sanctions.

As to the further responses to RFPD Nos. 10-12, upon examination of the contents of the thumb drive, Plaintiff's counsel found that it only contained pleadings and exhibits filed with the Court in Santa Clara County Superior Court Cases No. 21CV388981, 22CV402440 and 22CV406644 that were publicly available. (*Id.*, at p. 8). Per Plaintiff's counsel, the contents of the thumb drive did not contain the following: e-mail correspondence between Defendant and his jointly represented clients, Plaintiff and/or Gilbert Marosi; (2) invoices for legal services rendered; (3) attorney client engagement agreements; (4) memoranda; (5) complete sets of discovery requests and responses; (6) document productions; (7) transcripts of any kind; and (8) objection free responses to Plaintiff's RFPD, Set One, Nos. 10-12. (*Id.*). Plaintiff's contacted Defendant Milks on May 1, 2026 regarding the deficiencies and offered Mr. Milks a chance to disagree with the characterization of the contents of the thumb drive and provided more time to comply to May 6, 2026. (*Id.*, and Exhibit K). Defendant responded on May 12, stating that he produced the entirety of Plaintiff's case files for the three cases No. 21CV388981, 22CV402440 and 22CV40664 and that he does not have access to ESI in connection with the case file under Rule of Court 2.502(3) and (4). (*Id.*, and Exhibit L). In response

Plaintiff's counsel highlighted that he refused to provide a response as to whether his e-mail account was imaged in order to ensure that all responsive information sought was forensically captured and emphasized that there was no production of a single e-mail between himself and Cecilia and Gilbert Marosi. (*Id.*). In prior discovery, Defendant had admitted that e-mail was used as a form of communication between himself and Cecilia and Gilbert Marosi. Plaintiff's counsel also noted that Defendant's reliance on Rule of Court, rule 2.502(3) and (4) were misplaced as it pertains to "definitions" to be given to the words, "court record" and "Court case information." Plaintiff's counsel emphasized that Mr. Milks had a duty or ability to provide Plaintiff's entire client file, communications, and ESI in his possession, custody, or control. (Declaration of Edward T. Colbert, p. 9); Exhibit M). Plaintiff's counsel offered to take the subject motion off calendar if Defendant would comply and produce RFPD 10-12. (*Id.*). Plaintiff's counsel received no further response.

The plaintiff seeks the following relief:

- (1) An Order compelling Defendant to provide code-compliant responses to Request for Production, set one, Nos. 10-12 as previously ordered by the Court after a March 19, 2026 hearing and April 6, 2026 Order within five days of the hearing;
- (2) Enforcement of the court's prior terms mandating Defendants to produce the plaintiff's complete client files including all electronically stored information ("ESI") and e-mail correspondence exchanged between Defendant's jointly represented clients, Cecilia and Gibler Marosi within five days of the hearing;
- (3) An order of evidence sanctions under Code of Civil Procedure section 2023.030(b), prohibiting Defendant from opposing the following: (i) Plaintiff has established that Defendant never obtained her consent to initiate litigation on her behalf; (ii) Plaintiff has established that Defendant never addressed any conflict of interest, of any kind, with Plaintiff; (iii) Plaintiff has established that Defendant never provided advice to Plaintiff or Gilbert Marosi concerning the likelihood that Plaintiff would be subject to an adverse judgment; (iv) Plaintiff has established that Defendant never advised Plaintiff or Gilbert Marosi concerning the likelihood that Plaintiff would be responsible for paying another party's attorneys' fees; (v) Plaintiff has established that Defendant did not provide any advice to Plaintiff or Gilbert Marosi concerning litigation-related documents that required Plaintiff's signature or verification (e.g., responses to discovery requests); (vi) Plaintiff has established that the amount of legal fees charged by Defendant were unreasonable; and (vii) Plaintiff has established that Defendant failed to provide legal advice to Plaintiff or Gilbert Marosi concerning the risks associated with the three different cases in which Defendant jointly represented Plaintiff and Gilbert Marosi.

Or in the alternative, under Code of Civil Procedure section 2023.030(c), an Order prohibiting Defendant from presenting evidence on the following matters: (i) any documents related to whether Defendant ever obtained Plaintiff's consent to initiate litigation on her behalf; (ii) any documents related to whether Defendant addressed any conflict of interest, of any kind, with Plaintiff; (iii) any documents related to advice given by Defendant to Plaintiff or Gilbert Marosi concerning the likelihood that Plaintiff would be subject to an adverse judgment; (iv) any documents related to advice given by Defendant to Plaintiff or Gilbert Marosi concerning the likelihood that Plaintiff would be responsible for paying another party's attorneys' fees; (v) any documents related to advice given by Defendant to Plaintiff or Gilbert Marosi concerning litigation-related documents that required Plaintiff's signature or verification (e.g., responses to discovery requests and engagement agreements); (vi) any documents related to the reasonableness of the legal fees charged by Defendant; and (vii) any documents related to any advice given by Defendant to Plaintiff or Gilbert Marosi concerning the risks associated with the three different cases in which Defendant jointly represented Plaintiff and Gilbert Marosi. (Plaintiff's, Memorandum of Points & Authorities, p. 11-16).

- (4) Monetary sanctions in the amount of \$5,400.00 pursuant to Code of Civil Procedure sections 2023.010(f), (g), (i) and 2023.030(a) as set forth under section IV.

Plaintiff's counsel emphasizes that "Defendant's obstinate failure and refusal to participate in the discovery process in good faith and his flouting of the Court's order has unnecessarily increased the cost of litigation and caused substantial and unjustified delays. Defendant's willful conduct has also caused significant prejudice to Plaintiff, who is 92 years old, as she has been prevented from obtaining critical information and documents needed to prosecute this action. (*Id.*, at p. 2).

The motion is unopposed. Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The plaintiff has met its burden in showing that the defendant has not complied with producing code-compliant discovery, ESI and email correspondence as well the plaintiff's file as previously addressed in the plaintiff's motion to compel and Court's Order. The Court will compel compliance with the prior Court Order and order the defendant to produce responses to RFPD, Nos. 10-12, ESI, email correspondence in native form, and client files.

IV. SANCTIONS

A. EVIDENTIARY SANCTIONS

Code of Civil Procedure section 2023.030 provides a broad range of sanctions available against anyone engaging in conduct that is a misuse of the discovery process, including the issuance of monetary, evidentiary, issue, and terminating sanctions. Misuses of the discovery process include failing to respond or to submit to an authorized method of discovery and disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g)). "The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses." (Code Civ. Proc., § 2023.030, subd. (b)). "The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence." (Code Civ. Proc., § 2023.030, subd. (c)).

Here, Plaintiff asserts that Defendant Milk's failure and refusal to comply with court orders and engage in good faith discovery merits evidentiary sanctions.

However, the Court notes that Defendant Milks complied with some portions of the Court Order including full payment of the sanctions award in the amount of \$2,000.00 and delivery of further responses in form of a thumb drive. Although the Court recognizes the plaintiff's position that the contents of the thumb drive was deficient and thus noncompliant, the court notes that discovery statutes evidence an incremental approach regarding evidentiary and monetary sanctions. (*Doppes, supra*, 174 Cal.App.4th at 992). The Court takes into consideration the totality of the circumstances and attempts to curb noncompliance while attempting to impose less severe sanctions to produce compliance. (*Mileikowsky, supra*, Cal.App.4th at 279–280).

Thus, the Court DENIES the plaintiff's request to impose evidentiary sanctions without prejudice as premature.

B. MONETARY SANCTIONS

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

Plaintiff seeks a total of \$5,400.00 in sanctions against the defendant for nine hours of time on this motion at the hourly rate of \$600.00. Plaintiff’s counsel notes he seeks less hours than he actually spent including 10 hours of meeting-and-conferring and preparing the subjection motion and an estimated 5 hours for reviewing any opposition briefs and filing a reply brief. The Court notes that the motion was unopposed so the 5 hours of estimated time is immaterial.

The Court finds that the plaintiff filed this motion to compel compliance with a court order arising from a RFPD request that was submitted nearly a year ago. The present motion has underlying facts to its motion to compel that was heard on March 19, 2026. The Court will award the plaintiff six hours of work at the rate of \$400.00, for a total sanction about of \$2,400.00.

V. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court issues the following ORDERS:

- (1) Plaintiff’s motion to compel the defendant to comply the previous March 19, 2026 court order formally filed on April 6, 2026, is GRANTED. Defendant is ORDERED to provide responses to RFPD Nos. 10-12 as previously mandated within 10 day of this hearing date.
- (2) Plaintiff’s motion to enforce the Court’s prior order mandating the defendant to produce Plaintiff Cecilia Marosi’s client files, including ESI and e-mail correspondence exchanged between the defendant, who jointly represented Cecilia and Gilbert Marosi, is GRANTED. Defendant is ORDERED to produce Plaintiff Cecilia Marosi’s client files, including ESI and e-mail correspondence exchanged between the defendant within 10 day of this hearing date.
- (3) Plaintiff’s motion for an order of evidence sanctions prohibiting Defendant from proffering certain evidence or in the alternative, an order of sanction prohibiting Defendant from opposing certain issues at hand is DENIED without prejudice as premature.
- (4) Plaintiff’s request for monetary sanctions in the amount of \$5,400.00 is DENIED as to the full requested amount, but GRANTED in the amount of \$2,400.00. Defendant is ORDERED to pay sanctions within 10 days of this hearing date.

The Court will prepare the formal Order.

Calendar Lines # 5
Case Name U.S. Bank National Association vs Sarkis Sayadi
Case No. 23CV414085
Motion to Enter Judgment Pursuant to Code of Civil Procedure section 664.6 I. <u>BACKGROUND</u> On August 26, 2025, Plaintiff US Bank National Association d/b/a Elan Financial Service (“Bank”) filed a motion to enter judgment pursuant to Code of Civil Procedure section 664.6 that was entered on July 26, 2024. The motion was accompanied by a proof of service indicating mail service on August 26, 2025. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court carefully reviewed the following: Plaintiff’s notice motion (totaling 3 pages); memorandum of points and authorities in support of the motion to enter judgment (totaling 3 pages); Declaration of Zhen Ren in support of the motion and attached Exhibit A (totaling 10 pages); Memorandum of Costs (totaling 2 pages); and the pleadings. II. <u>LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 664.6: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6). Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (<i>Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.</i> (2002) 103 Cal.App.4th 30, 37). Accordingly, “parties” under section 664.6 means the litigants themselves, not their attorneys. (<i>Levy v. Superior Court</i> (1995) 10 Cal.4th 578, 586 (holding “we conclude that the term ‘parties’ as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.”).) Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (<i>J.B.B. Investment Partners, Ltd. v. Fair</i> (2014) 232 Cal.App.4th 974, 985). “Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (<i>Weddington Prods., Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (<i>Id.</i>) The court may not “create the material terms of a settlement,” and must instead decide on what terms the parties agreed upon. (<i>Id.</i>; <i>Terry v. Conlan</i> (2005) 131 Cal.App.4th 1445, 1460; <i>Osumi v. Sutton</i> (2007) 151 Cal.App.4th 1355, 1360; <i>Fiore v. Alvord</i> (1985) 182 Cal.App.3d 561, 565-566). “In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone.” (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994). III. <u>ANALYSIS</u>